

TERMS OF BUSINESS

1. Definitions and Interpretation

1.1 Your contract is with Gordon & Co Legal Services Limited. Information about the Firm is set out at clause 3.

1.2 “We”, “us”, “our”, “Gordon & Co Legal Services” and “the Firm” mean Gordon & Co Legal Services Limited. References to a director, manager, barrister, solicitor, lawyer or fee-earner describe role or professional status and do not create a partnership under the Partnership Act 1890.

1.3 “You” and “your” mean each person or entity party to the contract with us, other than the Firm.

1.4 These Terms and our letter of engagement set out the basis on which we accept instructions and charge. If inconsistent, the letter of engagement prevails for that matter.

1.5 We may amend these Terms for legal, regulatory, operational or technological developments. We will give reasonable notice of a material change affecting an ongoing matter. Current Terms will appear at [website].

2. Authority and Responsibilities

2.1 By instructing us, you authorise us to use reasonable steps necessary to provide the agreed services. We may use appropriate staff and approved providers. If a separate professional is needed, we will explain whether you must instruct and pay them directly. We will not receive money for onward payment.

2.2 Our advice is limited to England and Wales unless agreed otherwise. We may help identify foreign lawyers, but you will ordinarily instruct and pay them directly.

2.3 You must describe the services and objectives; give clear, prompt instructions and sufficient information; cooperate and notify changes; safeguard relevant documents; and provide requested material promptly.

2.4 We may assume you are entitled to give us documents and information and that they are complete, accurate and current unless told otherwise.

2.5 A company or organisation must identify those authorised to instruct us and any requirement for joint approval.

3. Information About the Firm and Regulatory Status

3.1 Gordon & Co Legal Services Limited trades as Gordon & Co Legal Services. It is a private limited company registered in England and Wales under number 16685632. Registered and practising address: 1st Floor, Romer House, 132 Lewisham High Street, London SE13 6EE. Telephone: 07572480992. Email: info@gordoncolegal.com. Website: www.gordoncolegal.com. VAT: not applicable unless notified otherwise. A directors list is available on request.

3.2 The Firm is authorised and regulated by the Bar Standards Board (“BSB”) as an Authorised Body, Entity Reference 194944.

3.3 The Firm is authorised for rights of audience, reserved instrument activities, probate activities, administration of oaths and litigation. Only an appropriately authorised solicitor within the Firm will conduct litigation. Barristers may advise, draft and advocate but will not conduct litigation unless separately authorised and you are informed in writing.

3.4 The Firm is a Bar Standard Board regulated and authorised legal entity. Solicitors remain individually subject to their applicable professional obligations. The engagement letter will identify responsibility for your matter, litigation and advocacy.

3.5 We maintain professional indemnity insurance meeting Bar Standard Board legal entity requirements. Insurer, territorial coverage and cover details are available on request.

3.6 Subject to clause 15 and any different engagement-letter limit, aggregate liability for an individual matter is limited to £3 million.

4. Fees, Disbursements and Payment

4.1 Unless otherwise agreed, fees are based on time at rates stated in the engagement letter.

4.2 Chargeable time may include meetings; papers; correspondence; calls and agreed messaging; research; internal consultations; hearings; and travel. Time is normally recorded in six-minute units.

4.3 Fees exclude third-party charges. The Firm is not currently VAT registered. If that changes, VAT will be charged only as required by law and notified for future charges.

4.4 Estimates are guides unless expressly fixed or capped and may be revised. You must promptly provide information affecting an estimate.

4.5 We may issue monthly or other interim final bills for the period covered, subject to later billing of third-party charges not yet received.

4.6 Bills may be sent by email. Paper copies are available on request.

4.7 Bills are payable within 14 days without set-off unless law provides otherwise. Statutory interest and compensation may be claimed on qualifying business debts. Other contractual interest must be stated in the engagement letter.

4.8 For unpaid bills we may take reasonable recovery action and, on notice, suspend or cease work subject to duties to you and the court.

4.9 BSB regulated entities may not directly or indirectly hold client money. This means that most BSB regulated entities operate on a fixed fee basis with many clients paying for their services in advance. This includes making payment of any disbursements directly to the third party such as counsel, court fees or experts.

4.10 A third party may invoice you directly. A charge incurred by the Firm in its own name may be recharged as a billed expense only if lawful and not client money.

4.11 You remain responsible if a third-party payer does not pay in full. Payment does not make that person our client.

4.12 Joint clients are jointly and severally liable unless agreed otherwise.

4.13 Raise billing queries promptly. You may use our complaints procedure and, if eligible, the Legal Ombudsman.

5. Costs and Litigation

5.1 A court or tribunal may order another party to pay some costs, but recovery is discretionary, may be partial and may be unenforceable. You remain responsible for our fees and billed expenses.

5.2 If unsuccessful, you may be ordered to pay another party's costs in addition to your own.

5.3 Tell us about legal-expenses insurance, potential public funding or third-party funding promptly.

5.4 After-the-event insurance or litigation funding requires separate consideration. The Firm is not FCA authorised and will not recommend or arrange insurance unless lawfully permitted.

6. Confidentiality, Conflicts and Data Protection

6.1 We check conflicts initially and during the matter and may need to decline or cease acting.

6.2 We keep client information confidential except where authorised, required or permitted by law or regulation, necessary for the service, or properly disclosed to insurers, auditors, advisers, regulators, quality reviewers or approved providers on confidential terms.

6.3 Information barriers will be used only where professionally permitted. These Terms do not constitute advance consent where informed consent is required.

6.4 With authority, relevant information may be shared with another professional adviser. We take reasonable steps on confidentiality and data protection.

6.5 We may disclose information to obtain legal advice, address claims or complaints, notify insurers or regulators, or exercise legal rights, subject to law and professional duties.

6.6 We will not publicise your name as a client without prior consent unless already lawfully public and professionally permitted.

6.7 We process data under our privacy notice at www.gordoncolegal.com.

6.8 Email is not guaranteed secure. Request encryption or another channel if needed. We will never notify you solely by email that bank details have changed. Verify details using a known telephone number.

7. Outsourcing, Third Parties and Technology

7.1 We may use third-party IT and support services with appropriate confidentiality, security and data protection, retaining responsibility as required.

7.2 We may identify counsel, foreign lawyers, translators, experts or specialists. Unless lawfully agreed otherwise, you instruct and pay them directly and their terms are separate.

7.3 Recommendations are made in good faith. Relevant interests and required consent will be addressed.

7.4 We may use secure technology, including AI, for administration, research, drafting or delivery. We remain responsible and apply professional review. Use remains subject to confidentiality, privilege, data protection, competence and court duties. Material impact on the service will be explained.

8. File Auditing and Quality Review

8.1 Regulators, auditors, insurers, accreditation bodies or quality reviewers may inspect selected files, subject to confidentiality, privilege and data-protection obligations.

9. Files, Documents and Retention

9.1 We may exercise a lawful lien for unpaid fees, subject to professional duties and court orders.

9.2 We ordinarily retain files for at least six years after closure, unless another period applies, then may securely destroy them.

9.3 We may charge reasonable retrieval, review, copying and delivery costs, explained in advance where practicable.

10. Termination

10.1 You may terminate at any time. You remain liable for fees and billed expenses incurred and necessary transfer or court-record work.

10.2 We may cease on reasonable notice for legal or regulatory restriction, conflict, lack of instructions, non-payment, failure to pay a necessary third party directly, or serious breakdown of trust and confidence.

10.3 We will protect immediate interests and facilitate orderly transfer, subject to lien, court permission and duties.

10.4 Court or tribunal permission may be required if we are on the record.

10.5 The engagement ends when agreed work and final billing are complete. Later general updates do not revive the retainer or constitute advice.

11. Financial Services

11.1 We provide legal, not financial or investment, advice. We are not FCA authorised and will not deal with a regulated financial product unless lawfully permitted and expressly agreed.

12. Anti-Money Laundering

12.1 We may verify clients, beneficial owners and connected persons and request source-of-funds, source-of-wealth and purpose information.

12.2 Checks may be electronic or documentary. Any external verification charge will be disclosed first and will not exceed £100 unless agreed.

12.3 We may be required to report and be prohibited from telling you. We may delay, decline or cease work to comply.

12.4 We do not accept cash or cryptoassets and cannot hold client money.

13. Sanctions

13.1 We comply with sanctions laws and may request information on identity, ownership, control, dealings, funds and payments.

13.2 We may disclose information where required or permitted.

13.3 You must cooperate with any licence application. We may suspend or cease if a required licence is unavailable or risk remains.

13.4 Sanctions arrangements must not involve us holding or transferring client funds.

13.5 Fees and billed expenses incurred remain due subject to law and licence requirements.

14. Complaints and Redress

14.1 Complaints about service or charges are free. Contact [complaints manager and details]. Procedure: [website].

14.2 We deal with complaints promptly, fairly and impartially. If unresolved after eight weeks, you may be eligible for the Legal Ombudsman.

14.3 The Ombudsman generally requires a complaint within one year of the act or omission, or awareness of cause, and within six months of a compliant final response. Current Scheme Rules govern eligibility and time limits.

14.4 Conduct concerns may go to the BSB and, for an individual solicitor, to the SRA as appropriate.

15. Our Liability

15.1 Services are provided with reasonable care and skill for the identified client and purpose. Others may not rely without written consent.

15.2 The contract is solely with the company. Individuals do not assume personal contractual liability merely by working on or signing a document, without excluding non-excludable liability or regulatory responsibility.

15.3 Subject to 15.7, aggregate liability per matter, and for related acts across related matters, is £3 million unless the engagement letter states otherwise.

15.4 To the lawful extent, we exclude indirect or consequential loss and loss of profit, revenue, opportunity, goodwill or savings. We are not liable for loss caused by materially inaccurate information, late instructions or events beyond reasonable control except to the extent caused by our breach.

15.5 Where others are responsible, liability is limited to our fair share. You must not agree another adviser's limitation that increases our share.

15.6 For multiple clients, the cap is aggregate and allocation is for them; no allocation increases the cap.

15.7 No exclusion applies to fraud, fraudulent misrepresentation, negligent death or personal injury, or liability that cannot lawfully be excluded. Limits remain subject to professional rules and insurance.

16. Equality, Diversity and Accessibility

16.1 We promote equality, diversity and inclusion. Our policy is available on request. Tell us about reasonable adjustments or alternative formats.

17. Severability and Force Majeure

17.1 Invalid provisions do not affect the remainder.

17.2 Neither party is liable for delay beyond reasonable control, except accrued payment duties, and must take reasonable mitigation steps.

17.3 After more than 28 consecutive days of substantial prevention, either may terminate by notice; accrued fees and expenses remain due.

18. Law, Jurisdiction and Acceptance

18.1 The contract comprises these Terms, the engagement letter and written matter-specific terms and is governed by England and Wales law.

18.2 Subject to mandatory consumer rights, England and Wales courts have exclusive jurisdiction. Arbitration or ADR applies only if separately and fairly agreed.

18.3 These Terms take effect on acceptance of the engagement letter or instruction to start after receipt. Review date: 1 October 2026.